

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Alyssa Rogowski	Team: Squad #7	CCRB Case #: 201903549	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 04/16/2019 7:00 PM	Location of Incident: At the intersection of Flatbush Avenue and Vanderveer Place	Precinct: 70	18 Mo. SOL 10/16/2020	EO SOL 6/2/2021	
Date/Time CV Reported Tue, 04/23/2019 10:26 AM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Tue, 04/23/2019 10:26 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Kelly Manning	11621	960862	070 PCT
2. POM John Baggs	21920	959467	070 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM John Baggs	Abuse: Police Officer John Baggs stopped the vehicle in which § 87(2)(b) was an occupant.	
B.POF Kelly Manning	Abuse: Police Officer Kelly Manning stopped the vehicle in which § 87(2)(b) was an occupant.	
§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)	
§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)	

Case Summary

On April 23rd, 2019, § 87(2)(b) filed the following complaint in-person at the CCRB.

On April 16th, 2019 at around 7:00pm, Police Officer John Baggs and Police Officer Kelly Manning, both of the 70th Precinct, pulled § 87(2)(b) over on Flatbush Avenue just past the intersection of Vanderveer Place in Brooklyn (**Allegations A and B: Abuse of Authority, § 87(2)(g)**). After reviewing his documentation, the officers let § 87(2)(b) go without a summons.

§ 87(2)(g), § 87(4-b)

The investigation obtained body-worn camera footage from PO Manning and PO Baggs that captures this incident (Board Review 04, 05).

Findings and Recommendations

Allegation A—Abuse of Authority: Police Officer John Baggs stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation B—Abuse of Authority: Police Officer Kelly Manning stopped the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(b) recalled that on April 16th, 2019, he had driven to the Dollar Tree at 1183 Flatbush Avenue, Brooklyn and parked in a metered space (Board Review 01, 02). Because he did not have any coins for the meter, rather than paying, he left his hazard lights on and went inside. After less than a minute, § 87(2)(b) exited the dollar store and got back into his car. Upon entering his car, he observed a marked police vehicle coming up behind him. The officers gestured for him to pull out onto the street. § 87(2)(b) hesitated then the police officer in the driver's seat, identified by the investigation as PO Baggs, honked at § 87(2)(b) to go ahead. § 87(2)(b) gestured for PO Baggs to go first but when he did not go, § 87(2)(b) pulled out. Because of this back and forth, § 87(2)(b) forgot about his hazard lights. § 87(2)(b) had only driven a short way when the officers activated their sirens and pulled § 87(2)(b) over on the right-hand side of Flatbush Avenue just past Vanderveer Place.

PO Baggs approached the driver's side and PO Manning approached the passenger side. § 87(2)(b) asked PO Baggs why he had been stopped and told PO Baggs that he must have been watching § 87(2)(b) because of the hazard light. PO Baggs then asked for his license and registration. He took § 87(2)(b)'s paperwork and was gone for about 10 minutes. When he came back with the papers, PO Baggs admitted that he had stopped § 87(2)(b) for the hazard lights. § 87(2)(b) told him that with the going back and forth between who would go first, § 87(2)(b) had just forgotten that his hazard lights were on. PO Baggs then returned § 87(2)(b)'s license and registration and let him go with no tickets.

PO Manning was interviewed about this incident and stated that the reason for the stop was that § 87(2)(b) had failed to signal when he exited his parking space (Board Review 03). PO Manning denied that there was anything else about the vehicle that drew her attention, rather it was just the violation of failing to signal. PO Manning denied that the vehicle had hazard lights activated when they pulled the vehicle over and rather reiterated that the reason for the stop was the failure to signal.

PO Manning did not recall whose decision it was to stop the vehicle or if there was conversation between her and PO Baggs about the stop. Upon pulling the vehicle over, PO Manning approached the vehicle on the passenger side. PO Manning could not hear conversation PO Baggs was having with § 87(2)(b) and did not herself speak to § 87(2)(b). There were

no issues with the stop and ultimately discretion was used to not issue a summons to § 87(2)(b).

Both PO Manning's and PO Baggs' BWCs corroborate PO Manning's statement (Board Review 04, 05). In his BWC, PO Baggs clearly articulates that the reason for the stop was that § 87(2)(b) failed to signal when he pulled onto Flatbush Avenue. It is clear from § 87(2)(b)'s responses to PO Baggs in the footage that he thinks PO Baggs is talking about his hazard light, which he refers to as his indicator light. There is no further conversation between § 87(2)(b) and PO Baggs after PO Baggs returns § 87(2)(b)'s documents and leaves without issuing a summons.

NYS VTL Article 28, section 1663 (b) states that, "a signal of intention to turn right of left when required shall be given continuously during not less than the last one hundred feet traveled by the vehicle before turning." Section 1663 (d) outlines the regulations for hazard lights, stating that they are to be used when the vehicle is stopped or disabled on a public highway or to warn operators of other vehicles of hazards in the roadway, adding that "no person shall use such signals for any other purpose" (Board Review 11).

§ 87(2)(g)

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to one prior CCRB complaint and was named victim in one allegation (Board Review 09).
 - § 87(2)(b)
- PO Kelly Manning has been a member-of-service for 3 years and this is the first CCRB complaint in which she has been a subject.
- PO John Baggs has been a member-of-service for 3 years and has been a subject in one prior CCRB complaints and two allegations, none of which were substantiated. ■

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
- On August 20th, 2019, a request for any record of a Notice of Claim being filed in regard to this complaint was sent to the New York City Office of the Comptroller. The response will be added to the case file upon receipt.

Squad No.: _____

Investigator: _____

Signature	Print Title & Name	Date
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Squad Leader: _____

Signature	Print Title & Name	Date
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Reviewer: _____

Signature	Print Title & Name	Date
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